

**CHAPTER xvi.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Ayr Burgh. [26th July 1929.] A.D. 1929.
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WHEREAS the Provisional Order set forth in the schedule hereunto annexed has after inquiry held before Commissioners been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict.
c. 47.
16 & 17
Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto. annexed shall be and the same is hereby confirmed. Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the Ayr Burgh Order Confirmation Act 1929. Short title.

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SCHEDULE.

AYR BURGH.

Provisional Order to authorise the provost magistrates and councillors of the burgh of Ayr to provide parking places to make further provision with regard to the regulation of tents and vans and the supply of water and for other purposes.

WHEREAS the burgh of Ayr (hereinafter called "the burgh") in the county of Ayr is under the government for municipal purposes of the provost magistrates and councillors of the burgh (hereinafter called "the Corporation") :

And whereas it is expedient that further powers should be conferred upon the Corporation with respect to the provision of parking places within the burgh as contained in this Order :

And whereas it is expedient that the powers in this Order mentioned for the regulation of tents vans sheds and similar structures within the burgh should be conferred upon the Corporation :

And whereas it is expedient that the Corporation should be authorised to borrow money for the purposes of this Order :

And whereas it has been agreed between the Corporation and the county council of the county of Ayr that the provisions of section 56 of the Ayr Burgh (Water &c.) Order 1927 be modified as in this Order provided and it is expedient that the other provisions in this Order contained should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

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PART I.

PRELIMINARY.

1.—(1) This Order may be cited as the Ayr Burgh Order 1929.

Short title
and citation
of Acts.

(2) The Acts of 1873 to 1927 and this Order may be cited together as the Ayr Burgh Acts 1873 to 1929.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming this Order which date is hereinafter referred to as “the commencement of this Order.”

Commence-
ment of
Order.

3. This Order is divided into Parts as follows :—

Division of
Order into
Parts.

Part I.—Preliminary.

Part II.—Parking places.

Part III.—Tents and vans.

Part IV.—Water.

Part V.—Finance.

4. The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and section 120 of the Lands Clauses Consolidation (Scotland) Act 1845) so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Order are hereby incorporated with and form part of this Order.

Incorpora-
tion of
Acts.

5. In this Order the several words terms and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Order shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order unless the context otherwise requires the following expressions shall have the respective meanings in this section applied to them (that is to say) :—

Interpreta-
tion.

“The burgh” means the municipal burgh of Ayr;

“The Corporation” means the provost magistrates and councillors of the burgh;

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“The town clerk” means the town clerk of the burgh for the time being;

“The sheriff” means the sheriff of the county of Ayr and includes his substitutes;

“The Act of 1873” “the Act of 1885” and “the Order of 1927” mean respectively the Ayr Burgh Act 1873 the Ayr Burgh Act 1885 and the Ayr Burgh (Water &c.) Order 1927;

“The Acts of 1873 to 1927” means the Ayr Burgh Acts 1873 to 1927;

“The Burgh Police Acts” means the Burgh Police (Scotland) Act 1892 and Acts amending the same;

The burgh general assessment” means the burgh general assessment leviable under the Burgh Police Acts.

PART II.

PARKING PLACES.

Parking
places for
vehicles.

6.—(1) Where in the opinion of the Corporation it is necessary or expedient to provide parking places in the burgh for vehicles the Corporation may provide such parking places in accordance with the provisions of this section and for that purpose may—

- (a) By order authorise the use as a parking place of any public street or part of a public street; or
- (b) Acquire by agreement lands suitable for use as a parking place; or
- (c) Utilise any lands belonging to them which may lawfully be appropriated for the purpose.

(2) An order under this section shall not authorise the use of any street or part of a street so as unreasonably to prevent access to any premises adjoining the street or so as to obstruct traffic or be a nuisance.

(3) Where the Corporation propose to make an order under this section authorising the use as a parking place of any street or part of a street or propose to acquire or utilise any land for the purposes of this section they shall cause notice of the proposal to be published once

in each of two successive weeks with an interval between such publications of not less than six clear days in some newspaper or newspapers circulating in the burgh and shall also cause a copy of such notice to be posted for not less than fourteen days in the part of the street which it is proposed to use as a parking place and every such notice shall—

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- (a) Specify the land to which the proposal relates;
- (b) Notify the date (which shall not be less than twenty-eight days) within which any objection to the proposal shall be sent in writing to the town clerk; and
- (c) Contain a notification of the right of appeal conferred by this section.

(4) Before making any order under this section the Corporation shall consider any objection to the proposal which is sent to the town clerk in writing within the time fixed in that behalf and shall after so considering it give notice of their decision to the person by whom the objection was made and if any person who shall have objected is aggrieved by any such decision he may within twenty-one days after receiving notice thereof appeal therefrom to the sheriff provided he sends written notice of the grounds of his appeal to the town clerk and the sheriff may make such order and on such terms and conditions as to the sheriff may seem just.

(5) The Corporation may—

- (a) Take all such steps as may be necessary to adapt for use as a parking place any land not being part of a street which they may acquire or utilise under this section; and
- (b) Appoint such officers and servants as may be necessary for the superintendence of parking places.

(6) The exercise by the Corporation of their powers under this section with respect to the use as a parking place of any street or part of a street shall not render them subject to any liability in respect of loss of or damage to any vehicle or the fittings or contents of any vehicle parked in such parking place or loss injury or damage to the owner of such vehicle or any other person.

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- (7) The Corporation may make regulations as to—
- (a) The use of parking places;
 - (b) The vehicles or class of vehicles which may use any parking place;
 - (c) The conditions upon which any parking place may be used; and
 - (d) The charges to be paid to the Corporation in connection with the use of any parking place not being part of a street.

A copy of any such regulations shall be exhibited at or near any parking place to which the regulations relate.

(8) While any vehicle is within a parking place it shall not be lawful for the driver or conductor of such vehicle or for any other person to ply for hire or accept passengers for conveyance by such vehicle.

(9) Any person contravening any of the provisions of this section or of any order or regulation made thereunder shall be liable to a penalty not exceeding forty shillings.

(10) Any order or regulation made under this section may be varied or revoked by any subsequent order or regulation made in like manner.

(11) In this section the expression “ parking place ” means a place provided under this section where vehicles or vehicles of any particular class or description may wait.

(12) Any expenses incurred by the Corporation in carrying into execution the provisions of this section including interest on any moneys borrowed and any instalments or sinking fund payments shall be paid out of the burgh general assessment.

PART III.

TENTS AND VANS.

Regulation
of tents
vans &c.

7.—(1) It shall not be lawful for any person without the consent of the Corporation acting as the local authority for the burgh under the Public Health (Scotland) Act 1897—

- (a) to let or use or permit to be used any land situate within the burgh for occupation by

any tent van shed or similar structure used or intended to be used for human habitation; or A.D. 1929.
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- (b) to place or keep on any land situate within the burgh any such tent van shed or similar structure;

and such consent may be given for such period and on such conditions as the Corporation think fit Provided that consent shall not be required by any person in respect of—

- (i) any tent van shed or similar structure placed or kept by the occupier of a dwelling-house upon any land connected therewith and used by him or members of his household;
- (ii) any tent van shed or similar structure used or intended to be used for human habitation by a person whose regular employment or occupation is that of a roundabout proprietor or travelling showman (not being a pedlar or hawker) Provided that the period during which such tent van shed or similar structure is so used in the burgh shall not exceed a period of six months in any period of twelve months and such tent van shed or similar structure is only used in connection with his employment or occupation.

(2) Any person aggrieved by the withholding by the Corporation of consent under the provisions of this section may within twenty-one days from the date of the decision of the Corporation appeal to the sheriff and the sheriff may make such order and on such terms and conditions as to the sheriff may seem just.

(3) If any person offend against any of the foregoing provisions of this section he shall be liable to a penalty not exceeding five pounds and in the case of a continuing offence to a further penalty not exceeding forty shillings for every day during which such offence continues after conviction therefor and all offences against the said provisions may be prosecuted in the police court.

(4) Section 73 (Tents and vans used for human habitation) of the Public Health (Scotland) Act 1897 shall in its application to the burgh be extended so as to authorise the Corporation to make byelaws with respect to the number of tents vans sheds or similar

A.D. 1929. — structures used or intended to be used for human habitation to be permitted on any land the area to be allotted to each such tent van shed or similar structure and the provision of adequate lighting and sections 183 to 187 of the said Act shall extend and apply to any byelaws made by the Corporation under this section.

(5) Nothing in this section shall prejudice or affect the powers and jurisdiction of the dean of guild of the burgh under the Burgh Police Acts.

PART IV.

WATER.

Amending
section 56
of Order of
1927.

8.—(1) Subsections (1) (2) (3) (4) (5) (6) (7) (8) (9) (10) (11) and (13) of section 56 (For protection of county council of county of Ayr) of the Order of 1927 are hereby repealed.

(2) Subsection (22) of the said section 56 is hereby amended and shall have effect as if the following paragraph were inserted therein in lieu of the last paragraph of that subsection :—

“ Water so supplied shall be paid for by the county council to the Corporation at such reasonable price as may be agreed between the water engineer of the Corporation and the county surveyor or the district surveyor of the county council or failing agreement be determined by arbitration as hereinafter in this section provided.”

PART V.

FINANCE.

Power to
borrow.

9.—(1) The Corporation may borrow such sum as may be requisite for the purpose of paying the costs charges and expenses of this Order Provided that any moneys so borrowed shall be repaid within five years from the commencement of this Order and any interest on any moneys so borrowed and any instalments or sinking fund payments shall be paid out of the burgh general assessment.

(2) (a) The Corporation may also borrow such sums of money for the purposes of the section of this Order the marginal note whereof is “ Parking places for vehicles ” as the Secretary of State may sanction.

(b) Any money borrowed under this subsection shall be repaid within such period and by such method as may be prescribed by the Secretary of State. A.D. 1929.
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(c) The Secretary of State shall have and may exercise in relation to any such sanction as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889 and such sanction shall be subject to such conditions (if any) as the Secretary of State may consider proper.

10. The provisions of sections 65 to 67 69 to 81 and 84 of the Order of 1927 shall subject to the provisions of this Order extend and apply mutatis mutandis to and in relation to the moneys borrowed by the Corporation under the powers of this Order and to the repayment thereof respectively and the expressions “statutory security” “statutory borrowing power” and “revenues of the Corporation” where used in the said sections shall have the respective meanings assigned to them by section 5 (Interpretation) of the Order of 1927. Application of financial provisions of Order of 1927.

11. Section 93 (Assessment of rates) of the Act of 1873 and that section as applied by section 52 (Sections 93 to 99 of recited Act to apply to streets assessment under this Act) of the Act of 1885 shall be read and have effect as if the fifteenth day of May had been mentioned therein instead of the twenty-sixth day of May wherever those words occur therein and as if the eleventh day of November had been mentioned therein instead of the twenty-second day of November. Assessments for water and street improvements.

12. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of moneys borrowed for that purpose under this Order. Costs of Order.

Printed by EYRE and SPOTTISWOODE, LTD.,

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